

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 21-05

MCS INDUSTRIES, INC. v. MSC MEDITERRANEAN SHIPPING COMPANY SA

NOTICE OF DECISION ON LETTER OF REQUEST

The undersigned counsel for Complainant MCS Industries, Inc. (“MCS Industries”) files this notice pursuant to the Presiding Officer’s June 8, 2022 Order.

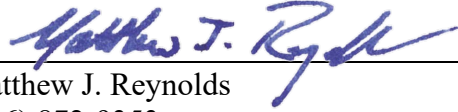
On July 7, 2022, Complainant’s counsel received the attached decision of the Tribunal de première instance for the Swiss canton of Geneva (the “Swiss Court”), dated June 29, 2022. A certified translation of the Swiss Court’s decision, which the undersigned counsel has shared with counsel for Respondent MSC Mediterranean Shipping Company SA (“Mediterranean” and, collectively with MCS Industries, the “Parties”), is also attached for the Presiding Officer’s reference. As reflected in the attached, the Swiss Court has denied the Presiding Officer’s May 4, 2022 letter of request (the “Letter of Request”) pursuant to the Convention of 18 March 1970 on the Taking of Evidence Abroad in Civil or Commercial Matters (the “Hague Evidence Convention”) on the grounds that this action is administrative (as opposed to civil or commercial) in nature, and therefore the Swiss Court considers the Letter of Request to be outside the scope of Article 1 of the Hague Evidence Convention.

Complainant’s counsel anticipates that counsel for both Parties will address this development in the forthcoming July 15, 2022 Joint Status Report ordered by the Presiding Officer’s June 8, 2022 Order.

Dated: July 8, 2022

Respectfully submitted,

HUTH REYNOLDS LLP



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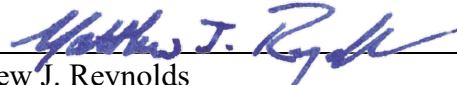
Certificate of Service

I hereby certify that I have this day served the foregoing document and its attachments upon Respondent MSC Mediterranean Shipping Company SA by emailing a copy of the document and its attachments to Respondent's counsel of record listed below:

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Counsel for Respondent MSC Mediterranean Shipping Company SA

Dated: July 8, 2022



Matthew J. Reynolds
For Complainant MCS Industries, Inc.



COPIE

Tribunal de première instance
Rue de l'Athénée 6-8
Case postale 3736
1211 GENEVE 3

Réf: **CR/21/2022 - XCR - 19**

à rappeler lors de toute communication

DECISION DU 29 JUIN 2022

Rendue dans le cadre de l'entraide judiciaire internationale CR/21/2022 - XCR - 19, requise par le Hon. Erin M. WIRTH, Juge en chef du tribunal administratif auprès de la Commission fédérale maritime des Etats-Unis

Vu la plainte déposée par MCS INDUSTRIES INC à l'encontre de MSC MEDITERRANEAN SHIPPING COMPANY SA, par devant la Commission fédérale maritime des Etats-Unis, pour violation de la Loi américaine de 1984 sur le transport maritime des marchandises.

Vu la demande d'entraide judiciaire internationale formée par le Hon. Erin M. WIRTH le 4 mai 2022, parvenue au Tribunal de première Instance de Genève le 31 mai 2022, visant à ce que celui-ci interpelle MSC MEDITERRANEAN SHIPPING COMPANY SA afin qu'elle fournisse des documents et des informations stockées électroniquement, puis réponde par écrit sous serment à des demandes de renseignements, relativement à la procédure précitée.

Considérant qu'à teneur de l'article 1 CLaH 70 de la Convention de La Haye du 18 mars 1970 sur l'obtention de preuves à l'étranger en matière civile ou commerciale (CLaH 70), à laquelle la Suisse et les Etats-Unis ont adhéré, l'autorité judiciaire d'un État contractant peut, en matière civile et commerciale, demander par commission rogatoire à l'autorité compétente d'un autre État contractant de faire tout acte d'instruction ainsi que d'autres actes judiciaires.

Que l'autorité judiciaire compétente aux fins d'exécution doit vérifier que les conditions d'application de la Convention sont respectées (cf. arrêt du Tribunal fédéral du 13 novembre 2002, consid. 1.2.3, 5A.17/2002), soit notamment examiner si la requête émane d'une autorité judiciaire et a trait à une cause civile ou commerciale (art. 1 al. 1 CLaH 70).

Qu'en l'occurrence, la procédure pour laquelle l'entraide est demandée est une procédure administrative instruite par un juge administratif rattaché à la Commission fédérale maritime des Etats-Unis.



Qu'ainsi, elle n'a pas trait à une cause civile ou commerciale et n'entre ainsi pas dans le champ d'application de la CLaH 70.

Qu'en conséquence, la commission rogatoire ne peut être exécutée, ce dont l'autorité requérante est informée par la présente ordonnance (art. 13 al. 2 CLaH 70).

Par ces motifs
LE TRIBUNAL :

Rejette la demande d'entraide judiciaire émanant du Hon. Erin M. WIRTH, Juge en chef du tribunal administratif auprès de la Commission fédérale maritime des Etats-Unis.

Sophie THORENS-ALADJEM
Juge

Indication des voies de recours :

Conformément aux articles 308 ss du Code de procédure civile (CPC), la présente décision peut faire l'objet d'un appel par devant la Cour de justice, Place du Bourg-de-Four, case postale 3108, 1211 Genève 3, dans les 10 jours qui suivent sa notification (art. 321 al. 2 CPC).

La présente ordonnance est communiquée pour notification à l'autorité requérante par le greffe
le 29 JUIN 2022

Copie en est transmise à



République et canton de Genève
POUVOIR JUDICIAIRE
Tribunal civil

Genève, le 29 juin 2022

Tribunal de première instance
Rue de l'Athénée 6-8
Case postale 3736
CH - 1211 GENEVE 3

CR/21/2022 19 THO XCR

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LAPOSTE

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signature

A-PRIORITY

Avis de réception

MCS INDUSTRIES
c/o HUTH REYNOLDS LLP
41 Cannon Court
11743 Huntington, NY
ÉTATS-UNIS

Réf : **CR/21/2022 19 THO XCR**
à rappeler lors de toute communication

Nous vous remettons ci-joint copie de la décision dans la cause mentionnée sous rubrique.

[emblem] Republic and Canton of Geneva
JUDICIARY
Civil Court

[stamp:] **COPY**

Court of First Instance
Rue de l'Athénée 6-8
Case postale 3736
1211 Geneva 3

Ref.: CR/21/2022 – XCR – 19

to be noted on every communication

DECISION OF [stamp:] 29 JUNE 2022

Issued in the context of international mutual judicial assistance CR/21/2022 – XCR – 19,
requested by Hon. Erin M. Wirth, Chief Administrative Law Judge of the United States Federal
Maritime Commission

In view of the complaint filed by MCS Industries Inc versus MSC Mediterranean Shipping Company SA, before the United States Federal Maritime Commission, for violation of the U.S. Shipping Act of 1984.

In view of the request for international mutual judicial assistance made by Hon. Erin M. Wirth on May 4, 2022, received by the Court of First Instance of Geneva on May 31, 2022, for the latter to summon MSC Mediterranean Shipping Company SA so that it would provide electronically stored documents and information, then respond in writing under oath to requests for information relating to the aforementioned proceedings.

Whereas according to Article 1 of the Hague Convention of 18 March 1970 on the Taking of Evidence Abroad in Civil or Commercial Matters (HCCH 1970), to which Switzerland and the United States are parties, the judicial authority of a contracting State may, in civil and commercial matters, request by letter rogatory that the competent authority of another contracting State carry out any investigative act or other judicial act.

Whereas the competent judicial authority for the purposes of enforcement must verify whether the conditions of application of the Convention have been met (cf. Federal Court decision of November 13, 2002, recital 1.2.3, 5A.17/2002), namely to examine whether the request emanated from a judicial authority and relates to a civil or commercial case (HCCH 1970 Art. 1(1)).

Whereas in this instance, the case for which mutual assistance is requested is an administrative proceeding directed by an administrative judge connected with the United States Federal Maritime Commission.

Whereas it thus does not relate to a civil or commercial case and thus does not fall within the scope of application of HCCH 1970.

Whereas the letter rogatory, therefore, cannot be enforced, of which the requesting authority is informed by this order (HCCH 1970 Art. 13(2)).

For these reasons
THE COURT:

Dismisses the request for mutual judicial assistance from Hon. Erin M. Wirth, Chief Administrative Law Judge of the United States Federal Maritime Commission.

Sophie Thorens-Aladjem
Judge [signature]

Mention of legal remedies:

In accordance with Article 308 et seq. of the Swiss Civil Procedure Code (CPC), this decision may be appealed before the Court of Justice, Place du Bourg-de-Four, case postale 3108, 1211 Geneva 3, Switzerland, within 10 days of this notification (CPC Art. 321 (2)).

This order is sent for notification to the requesting authority by the clerk
on [stamp:] 29 JUNE 2022

Copy sent to

[emblem] Republic and Canton of Geneva
JUDICIARY
Civil Court

Geneva, June 29, 2022

Court of First Instance
Rue de l'Athénée 6-8
Case postale 3736
1211 Geneva 3

CR/21/2022 19 THO XCR

A-PRIORITY
Acknowledgement of receipt

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R P371 61411 5 CH
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MCS INDUSTRIES
c/o HUTH REYNOLDS LLP
41 Cannon Court
11743 Huntington, NY
UNITED STATES

Ref.: CR/21/2022 19 THO XCR to be noted on every communication
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Please find attached a copy of the decision in the case mentioned in the heading

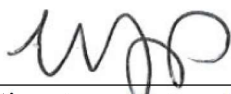
City of New York, State of New York, County of New York

I, Shayna Himelfarb, hereby certify that the document “**COPIE**” is, to the best of my knowledge and belief, a true and accurate translation from French into English.



Shayna Himelfarb

Sworn to before me this
July 8, 2022



Signature, Notary Public



Stamp, Notary Public